

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Tileyah Williams	Team: Squad #06	CCRB Case #: 202307636	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Thursday, 08/10/2023 9:00 PM	Location of Incident: Park Avenue between Marcy Avenue and Nostrand Avenue	18 Mo. SOL 2/10/2025	Precinct: 79		
Date/Time CV Reported Tue, 08/15/2023 10:00 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 08/15/2023 10:00 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Shazana Zaman	25125	970336	PSA 3
2. PO Steven Guerrero	12693	966089	PSA 3

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Krishawni Denton	11187	967479	PSA 3
2. PO Sergio Mejia	05845	975655	079 PCT
3. PO Christopher Caesar	17689	974773	084 BK BRDG
4. PO Sabrina Caride	06470	976021	079 PCT
5. PO Keith Meisner	07069	963647	PSA 3

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Steven Guerrero	Abuse: Police Officer Steven Guerrero stopped § 87(2)(b)	A . Substantiated
B . PO Shazana Zaman	Abuse: Police Officer Shazana Zaman stopped § 87(2)(b)	B . Miscellaneous - Subject Resigned
C . PO Shazana Zaman	Abuse: Police Officer Shazana Zaman questioned § 87(2)(b)	C . Miscellaneous - Subject Resigned
D . PO Steven Guerrero	Force: Police Officer Steven Guerrero used physical force against § 87(2)(b)	D . Unable to Determine
E . PO Steven Guerrero	Discourtesy: Police Officer Steven Guerrero spoke discourteously to § 87(2)(b)	E . Substantiated
F . PO Steven Guerrero	Abuse: Police Officer Steven Guerrero failed to explain to § 87(2)(b) the reason for a law enforcement activity.	F . Substantiated
G . PO Shazana Zaman	Abuse: Police Officer Shazana Zaman failed to explain to § 87(2)(b) the reason for a law enforcement activity.	G . Miscellaneous - Subject Resigned
H . PO Steven Guerrero	Abuse: Police Officer Steven Guerrero improperly used his body-worn camera.	H . Unable to Determine

Case Summary

On August 15, 2023, § 87(2)(b) filed this complaint over the phone with the CCRB.

On August 10, 2023, at approximately 9:00pm, § 87(2)(b) walked to Park Avenue, between Marcy Avenue and Nostrand Avenue in Brooklyn. Police Officer Steven Guerrero and Police Officer Shazana Zaman of PSA 03 stopped § 87(2)(b) (**Allegation A: Abuse of Authority, Miscellaneous- Subject Resigned**) (**Allegation B: Abuse of Authority, substantiated**). PO Zaman asked § 87(2)(b) what he was doing and if he had anything on him (**Allegation C: Abuse of Authority, Miscellaneous- Subject Resigned**). PO Guerrero pushed § 87(2)(b) and told him, “I’m asking for your fucking ID” (**Allegation D: Force, unable to determine and Allegation E: Discourtesy, substantiated**). Neither PO Zaman nor PO Guerrero explained the reason for stopping § 87(2)(b) (**Allegations F: Abuse of Authority, substantiated**) (**Allegation G: Abuse of Authority, Miscellaneous- Subject Resigned**). § 87(2)(b) refused to provide officers with his ID, was handcuffed and transported to PSA 03 stationhouse. § 87(2)(b) received a summons for disorderly conduct. PO Guerrero did not record the beginning of the incident (**Allegation H: Abuse of Authority, unable to determine**).

The investigation received body-worn camera (BWC) videos from all officers who were involved (**01- 03 Board Review**). The investigation also obtained mobile phone video and TARU footage (**04, 05 Board Review**).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Steven Guerrero stopped § 87(2)(b)

Allegation (B) Abuse of Authority: Police Officer Shazana Zaman stopped § 87(2)(b)

Allegation (C) Abuse of Authority: Police Officer Shazana Zaman questioned § 87(2)(b)

TARU footage from camera 1 at Marcy Avenue and Ellery Street in Brooklyn records § 87(2)(b) at 1:03:55 minutes, dancing, smoking an unknown substance and talking with other males (**05 Board Review**). § 87(2)(b) is standing near benches outside of NYCHA Development: Marcy Houses. Starting at 1:05:15 minutes the camera zooms in on § 87(2)(b) and the males. At 1:10:37 minutes, § 87(2)(b) gives a male a handshake and walks away from the location. The TARU camera follows § 87(2)(b) to the end of the street, at 1:12:38 minutes, where his interaction with officers begins. The street is dark, and the interaction is not clearly depicted.

PO Zaman’s BWC recording at 55 seconds PO Zaman’s vehicle is coming to a stop in front of § 87(2)(b) who is on the sidewalk at the corner of a crosswalk (**02 Board Review**). PO Zaman is seated in the back seat behind the operator of the vehicle. At 57 seconds, § 87(2)(b) is seen with a dark blue sweater draped over his left arm, which he is holding to the front left side of his body. § 87(2)(b) full body faces forward, toward the opposite side of the street and he does not blade his body at any point. PO Zaman exits her vehicle, approaches § 87(2)(b) and holds his right forearm. PO Zaman immediately asks, “You got anything on you?” § 87(2)(b) then steps back and says, “Don’t touch me.” PO Zaman asks, “Why you moving like that?” At 1:08 minutes, PO Guerrero tells § 87(2)(b) “Let me get your ID.”

At 52 seconds of PO Denton’s BWC, PO Denton is seated at the front passenger of the officers’ vehicle (**03 Board Review**). At 53 seconds, § 87(2)(b) comes to the frame and is looking toward the opposite side of the street when officers pull up in front of him. PO Zaman and PO Guerrero approach him. At 1:01 minutes, the camera shows that PO Guerrero also touched § 87(2)(b) when he approached him, but his hands are not in view.

§ 87(2)(b) testified that prior to interacting with officers, he did not recall what he was doing nor where he came from **(06 Board Review)**. When officers exited their vehicle, PO Zaman and PO Guerrero grabbed § 87(2)(b) torso, arms, wrist, and chest and held him. PO Guerrero asked § 87(2)(b) what he was doing, and § 87(2)(b) asked PO Guerrero what he meant. § 87(2)(b) did not know why he was being stopped. § 87(2)(b) wore fitted Nike tech sweatpants, a white T-shirt and a sweater over his shoulder. He was carrying a fanny pack over his shoulder, which was opened revealing his iPhone charger. He believed that his keys were in his left pants pocket or in his fanny pack but was unsure. He was not sure where his phone was. § 87(2)(b) could not recall having anything else in his pockets and did not believe that anything made a bulge in his pocket. There was nothing heavy in his fanny pack.

§ 87(2)(b) did not testify to PO Zaman questioning him and allegation C is being pled based on BWC footage.

PO Guerrero, who was driving the vehicle with his window open, testified that as he drove toward § 87(2)(b) he saw that § 87(2)(b) was holding his left arm tight against the left side of his body **(07 Board Review)**. § 87(2)(b) right side was toward the officers. PO Guerrero did not see any object under § 87(2)(b) left arm; however, § 87(2)(b) turned his body slightly away from the officers. PO Guerrero believed that § 87(2)(b) may have been concealing a “dangerous weapon,” and wanted to check. PO Guerrero did not specify the weapon. PO Zaman was the first officer out of the vehicle. When he and PO Zaman approached § 87(2)(b) stepped back. PO Guerrero grabbed and held § 87(2)(b) shirt around his torso, to prevent § 87(2)(b) from fleeing. PO Guerrero then asked § 87(2)(b) for his ID. § 87(2)(b) then raised his arms and PO Guerrero could see that § 87(2)(b) was not concealing a weapon. There was nothing under § 87(2)(b) armpit. PO Guerrero proceeded to ask § 87(2)(b) for his ID because he stopped him and needed to complete paperwork for the stop.

PO Zaman’s testimony was consistent with PO Guerrero’s with the following exceptions **(08 Board Review)**. PO Zaman recalled that § 87(2)(b) had his sweater held tightly against the left side of his body and she believed that something may have been in the sweater but she did not know what. At that point, officers decided to ask § 87(2)(b) whether there was something in the sweater. After the officers got out of their vehicles, § 87(2)(b) turned his body away from the officers. PO Zaman pushed § 87(2)(b) raised arms down, so that he was controlled, and PO Zaman could restrain him if necessary. PO Zaman asked § 87(2)(b) whether he had anything on him because he held his sweater tightly and turned his body as officers walked toward him. § 87(2)(b) immediately became aggressive and tried to evade the officers. Since PO Zaman was on § 87(2)(b) right side when he raised his arms, she could not tell whether there was a weapon on his left side.

PO Zaman resigned on December 2, 2024 **(20 Board Review)**.

The investigation did not plead a stop against PO Denton because he did not physically initiate the stop. PO Denton was not interviewed because BWC, PO Zaman and PO Guerrero’s testimonies were sufficient to arrive at a disposition.

There are no NYPD documents that note the reason officers stopped § 87(2)(b) C-Summons § 87(2)(b) notes that § 87(2)(b) later received a summons for disorderly conduct and that he had no weapons **(09 Board Review)**. The summons also notes that § 87(2)(b) caused a crowd to gather and engaged in violent tumultuous or threatening behaviors.

Officers are permitted to approach a citizen and request information if they have a credible, and articulable reason to do so, not necessarily indicative of criminality, People v. De Bour, 40 N.Y.2d 210 (1976) (**19 Board Review**). The second level of intrusion permits officers to momentarily stop an individual when there is founded suspicion that criminality is afoot. The third level is that an officer may forcibly stop and detain a person when they believe that the individual has been involved in criminal activity. Level four authorizes officers to effect an arrest when there is probable cause to believe that an individual has committed, is committing, or is about to commit a crime.

§ 87(2)(g) BWC showed that when PO Zaman and PO Guerrero approached § 87(2)(b) they held him in place and he was not free to leave. § 87(2)(g) the BWC showed that § 87(2)(b) body did not change position or turn away from officers as PO Zaman and PO Guerrero described.

§ 87(2)(g) it is therefore recommended that **Allegations A** be closed as *substantiated*.

§ 87(2)(g) It is therefore recommended that **Allegations B** and **C** be closed as **Miscellaneous- Subject Resigned**.

Allegation (D) Force: Police Officer Steven Guerrero used physical force against § 87(2)(b)

PO Denton's BWC shows that at 1:05 minutes, while PO Guerrero and PO Zaman continue efforts to hold him in place, § 87(2)(b) moves his right arm that PO Zaman is holding, upward to release her grip and takes a couple steps backward (**03 Board Review**). At 1:06 minutes, § 87(2)(b) sweater swings outward revealing no weapon, and PO Guerrero releases him. § 87(2)(b) is holding his mobile phone in his right hand. At 1:09 minutes, PO Guerrero uses his left hand to hold the left side of § 87(2)(b) torso. § 87(2)(b) continues to pull himself backward from the officers and his right arm is lifted. PO Zaman pulls § 87(2)(b) right arm downward and when § 87(2)(b) right arm goes down, it moves over PO Guerrero's forehead. The angle does not show whether the phone hit PO Guerrero's forehead or not. § 87(2)(b) back is facing officers, however both PO Zaman and PO Guerrero are pulling the side of § 87(2)(b) shirt and right arm. PO Guerrero takes one step toward § 87(2)(b) and uses two hands to push § 87(2)(b) upper body a few feet away from him and PO Zaman. § 87(2)(b) stumbles backward but breaks his fall.

§ 87(2)(b) testified that after PO Guerrero grabbed § 87(2)(b) torso, wrist and chest and asked what § 87(2)(b) was doing, PO Guerrero released and pushed § 87(2)(b) away from the officers (**06 Board Review**). § 87(2)(b) did not know the reason PO Guerrero did this. PO Zaman and PO Guerrero then approached and grabbed § 87(2)(b) again, as they asked for his ID.

PO Guerrero testified that after he grabbed § 87(2)(b) shirt and asked for his ID, § 87(2)(b)

attempted to pull away from him by raising his arms (**07 Board Review**). PO Guerrero noticed that § 87(2)(b) did not have a weapon. As § 87(2)(b) continued his attempts to get away, he brought his arm down and hit PO Guerrero in his nose with his mobile phone. This did not injure PO Guerrero, but he felt pain afterwards. PO Guerrero believed that § 87(2)(b) did this on purpose because he was trying to get the officers off him.

PO Zaman testified that as § 87(2)(b) moved his arms around to avoid officers, § 87(2)(b) hit PO Guerrero in his eye with the mobile phone (**08 Board Review**). PO Guerrero then created some distance by pushing § 87(2)(b).

Officers are permitted to use force when it is reasonable to place a person into custody, prevent escape from custody or to ensure the safety of a member of service or a third person NYPD Patrol Guide 221-01 (**11 Board Review**).

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
The BWC showed that when PO Denton approached the scene, both of § 87(2)(b) arms were away from his § 87(2)(b) body. No weapon was revealed and § 87(2)(b) was moving away from officers. § 87(2)(g)
§ 87(2)(g)
BWC footage does show that when § 87(2)(b) arm moved downward, it went towards PO Guerrero's face. § 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

§ 87(2)(g) it is recommended that **Allegation D** be closed as *unable to determine*.

Allegation (E) Abuse of Authority: Police Officer Steven Guerrero spoke discourteously to

§ 87(2)(b)

PO Denton's BWC shows that at 1:16 minutes, after PO Guerrero pushes § 87(2)(b) PO Guerrero tells § 87(2)(b) "I'm asking for your fucking ID" (**03 Board Review**).

§ 87(2)(b) did not testify to PO Guerrero speaking discourteously and allegation F is being pled based on BWC footage.

PO Guerrero testified that he continued to ask for § 87(2)(b) ID so that he could complete a stop report (**07 Board Review**). He used the word, "fucking," because § 87(2)(b) was being combative, and PO Guerrero was angry that he had been struck in the face.

Officers must value human life, respect the dignity of each individual and render services with courtesy and civility NYPD Patrol Guide Procedure 200-02 (**12 Board Review**). Officers may use discourteous language during violent confrontations or when gaining control of a civilian to be placed under arrest Disciplinary Case Trial 2017-17276 (**13 Board Review**).

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g). Prior to this statement being made, PO Guerrero requested § 87(2)(b) ID and struggled to hold § 87(2)(b) who he was attempting to detain. § 87(2)(b) refused to provide his ID and attempted to get away from

officers. However, § 87(2)(g) the physical confrontation had ended. § 87(2)(g) it is recommended that **Allegation E** be closed as *substantiated*.

Allegation (F) Abuse of Authority: Police Officer Steven Guerrero failed to explain to § 87(2)(b) the reason for a law enforcement activity.
Allegation (G) Abuse of Authority: Police Officer Shazana Zaman failed to explain to § 87(2)(b) the reason for a law enforcement activity.

PO Zaman and PO Denton recorded the full incident on their respective BWC. The footage shows that during the stop, the officers do not explain the reason that they stopped § 87(2)(b) (**02, 03 Board Review**). As mentioned earlier, PO Denton's BWC shows that at 1:05 minutes, PO Zaman and PO Guerrero approach § 87(2)(b) (**03 Board Review**). After PO Zaman touches § 87(2)(b) moves his right arm that PO Zaman is holding upward to release her grip and takes a couple steps backward § 87(2)(b) is holding his mobile phone in this hand. PO Denton's BWC footage does not show § 87(2)(b) push PO Zaman. § 87(2)(b) continues to pull himself backward from officers and his lifted right arm moves down over PO Guerrero's forehead. The angle does not show clearly whether the phone hit PO Guerrero's forehead. PO Guerrero uses two hands and pushes § 87(2)(b) upper body a few feet away from him and PO Zaman. § 87(2)(b) stumbles backward but breaks his fall.

At 16:40 minutes of PO Denton's BWC recording, while § 87(2)(b) is about to be placed in a holding cell at the stationhouse, PO Denton says that § 87(2)(b) will be receiving a summons for disorderly conduct (**03 Board Review**).

§ 87(2)(b) testified that he did not know what officers were trying to do with him at the incident location, and he did not know why he was being stopped (**06 Board Review**).

PO Guerrero testified that when they first approached § 87(2)(b) he did not explain the reason they were stopping § 87(2)(b) because § 87(2)(b) was immediately combative, raising his arms and stepping away from officers (**07 Board Review**). After PO Guerrero created distance between § 87(2)(b) and the officers by pushing § 87(2)(b) he did not explain the reason for the stop because § 87(2)(b) hit him in the face. PO Guerrero said that he did not have to explain the reason for the stop as they transported § 87(2)(b) to the stationhouse because he could do so at the stationhouse. PO Guerrero did not explain once they were at the stationhouse because he did not want to be around § 87(2)(b) after being struck by him.

PO Zaman said that she did not initially explain the reason they stopped § 87(2)(b) because when they approached him, § 87(2)(b) moved his arms, pushing PO Zaman and hitting PO Guerrero with the phone (**08 Board Review**). She did not explain the reason he was stopped once § 87(2)(b) was pushed away, because she was more concerned with getting his ID so that she could issue him a summons for pushing her and hitting PO Guerrero.

PO Zaman resigned on December 2, 2024 (**20 Board Review**).

C-Summons § 87(2)(b) notes that § 87(2)(b) later received a summons for disorderly conduct and that he had no weapons (**09 Board Review**). The summons also notes that § 87(2)(b) caused a crowd to gather and engaged in violent tumultuous or threatening behaviors. The summons did not note any of § 87(2)(b) behaviors which led to the stop.

Officers must provide an explanation of the reason for law enforcement activity, unless providing such information would impair a criminal investigation or exigent circumstances are present, such as physical resistance, flight, imminent danger, physical injury, damage of property or other factors making such procedure impractical Administrative Guide 304-11 (14 Board Review).

§ 87(2)(g)

it is recommended that **Allegation F** be closed as *substantiated*.

§ 87(2)(g)

It is therefore recommended that **Allegation G** be closed as **Miscellaneous-Subject Resigned**.

Allegation (H) Abuse of Authority: Police Officer Steven Guerrero improperly used his body-worn camera.

The request for BWC resulted in one recording from PO Guerrero, which began as he was transporting § 87(2)(b) to the stationhouse **(01 Board Review)**.

§ 87(2)(b)

testified that he did not see any of the officers with their BWCs activated when they first approached him **(06 Board Review)**.

This allegation was only against PO Guerrero because the investigation received BWC recordings from the other officers

PO Guerrero testified that as he exited the vehicle to approach § 87(2)(b) he touched his camera to activate it and thought that he heard it beep on **(07 Board Review)**. He was focused on dealing with § 87(2)(b) and only noticed that it was off as he was transporting § 87(2)(b) to the station house.

Officers must activate their BWCs before engaging in any police action, including addressing quality of life conditions and self-initiated investigative actions NYPD Patrol Guide Procedure 212-123 (15 Board Review).

§ 87(2)(g)

it is recommended that **Allegation H** be closed as *unable to determine*.

Civilian and Officer CCRB Histories

• § 87(2)(b)

- § 87(2)(b) [REDACTED]
- PO Zaman has been a member of service for three years and has been a subject in three other CCRB complaints and ten other allegations.
 - § 87(2)(g) [REDACTED]
- PO Guerrero has been a member of service for five years and has been a subject in twelve other CCRB complaints and 29 other allegations, four of which were substantiated.
 - Case 202207345 involved substantiated allegations of a stop of a person, frisk, failure to explain and failure to provide RTKA card. The Board has not yet made any recommendations for discipline.
 - Case 202103783 involved two allegations of physical force pled against PO Guerrero, one of which was closed as complainant uncooperative and one of which was closed as alleged victim unavailable.
 - Case 202107711 involved two allegations of physical force pled against PO Guerrero, To date this investigation is still open.
 - Case 202202986 involved an allegation of physical force pled against PO Guerrero, which was closed as within NYPD guidelines.
 - Case 202207074 involved one allegation of physical force pled against PO Guerrero which was closed within NYPD guidelines. The Board has not yet made any recommendations for discipline.
 - § 87(2)(g) [REDACTED]
 - Case 202300688 involves an allegation of physical force pled against PO Guerrero. To date, this investigation is still open.
 - Case 202303077 involves an allegation of physical force pled against PO Guerrero, which was closed as complainant unavailable.

Mediation, Civil, and Criminal Histories

- § 87(2)(b) [REDACTED] declined to mediate this complaint.
- As of November 30, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed regarding this incident (**17 Board Review**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad: 6

Investigator: Tileyah Williams SI Tileyah Williams 01/08/2024

Date

Reviewer: _____

Signature	Print Title & Name	Date
-----------	--------------------	------